

Nova Scotia Building Code Regulation

USERS VERSION

February 1, 2026

Regulations are not included with this User's Guide. Please see [Nova Scotia Building Code Regulations - Building Code Act \(Nova Scotia\)](#) for the official regulations



Amendments to the current Building Code Regulations

Regulation Number	Filed	Effective
N.S. Reg 198/2024	September 20, 2024	April 1, 2025
N.S. Reg 199/2024	September 20, 2024	April 1, 2026
N.S. Reg 200/2024	September 20, 2024	April 1, 2027
N.S. Reg 201/2024	September 20, 2024	April 1, 2029
N.S. Reg 133/2025	July 15, 2025	August 1, 2025
N.S. Reg 3/2026	January 13, 2026	February 1, 2026

Tiers for Codes

Tier in Code	NBC 9.36.	NECB
1	April 1, 2025	April 1, 2025
2	April 1, 2026	April 1, 2027
3	April 1, 2027	April 1, 2029
4	TBD	TBD
5	TBD	n/a

Links to 2020 National Codes:

[National Building Code of Canada 2020, 1st printing](#)

[National Energy Code of Canada for Buildings 2020, 1st printing](#)

[National Plumbing Code of Canada 2020, First Printing](#)

[1995 Farm Building Code](#)

[Part 9 Illustrated Guide](#)

[2020 Part 4 Structural Commentary](#)

[1995 Part 3 User's Guide](#)

Note: The 2nd printing is **NOT** in effect in Nova Scotia for any Codes listed above.

Acknowledgements

The Department of Growth and Development gratefully acknowledges the contributions of the many individual volunteers who participate in the Code development process. In particular, the Department recognizes the following volunteers for the continuing support.

Nova Scotia Building Advisory Committee

Jon Mullin (Chair)	Martin Livingston (Vice Chair)
Roxanne Tate	Lorelei Atkinson
Marlin Plett	Julie Chapman
Jim Bungay	Ross Sampson
David Buell	Adam Read
Allison Casey	

Building Code Website Information

The general building code information website address is:

<http://novascotia.ca/buildingcode>

This site also includes:

- Rules of Procedure for a Hearing
- Application forms for a Hearing
- Links to the
 - Building Code Act
 - Building Code Regulations

Building Officials The Administration and Enforcement of these Regulations and The Building Code Act is the responsibility of the municipal government.

Building Code Act A copy of the Building Code Act is available at:

<http://nslegislature.ca/legc/statutes/buildcod.htm>

Building Code Regulation A copy of the Building Code Regulations is available at:

<http://www.novascotia.ca/just/regulations/regs/bcregs.htm>

Disclaimer: For accurate reference please see an official copy of the regulations.

Attention

SIGNUP ONLINE for automatic receipt of updates via NSCode mailing list

<https://beta.novascotia.ca/sign-building-code-updates>

CGSB Standards are available free:

See link below for their catalogue of standards.

[Canadian General Standards Board Catalogue - CGSB - PSPC - Canada.ca](#)

ULC standards can be viewed for free at www.shopulstandards.com after registering for a free account.

NFPA standards can be viewed for free at [NFPA Products and Solutions](#) after registering for a free account.

CSA Accessibility standards are available free:

[CSA Group - Accessibility Standards for CTA - CSA Group](#)

Nova Scotia references the CSA B651-18 in the Building Code Regulations.

Code Change Form

Page One of Two

(only one proposed change on any one submission - duplicate as necessary - print single sided)

(Attach additional pages as necessary or use any other format as long as all the information indicated below is included.)

Mail to: Executive Secretary
Nova Scotia Building Advisory Committee
PO Box 702, STN Central,
Halifax, NS B3J 2T3

e-mail to: buildingcodes@novascotia.ca

please print

name:

mailing address:

city/town

province

postal code

street address (if different):

city/town

province

postal code

phone

fax

e-mail

Code Reference it is proposed to change (Article, Sentence, etc.)

Problem - Why should the existing provision be changed or, if proposing an addition to the Code, what is missing?:

Proposed Change/Addition - What wording for the change/addition do you think should be used in the Code?:

Justification/Explanation - How does proposed change/addition address the problem?:

Cost Implications - Will the change/addition entail any added costs? Will it provide benefits measurable in monetary terms?

Enforcement Implications - Can the proposed change/addition be enforced by the infrastructure available to enforce this Code? Will its enforcement require an increase in resources?

Other Comments:

Attached Supporting Material: [Please attach supporting documentation or additional pages if required]

Has this submission previously been made to the Canadian Board for Harmonized Construction Codes (CBHCC) for a change to the National Code?

Yes ☐

No ☐

If your answer is yes what was the outcome of that submission? [Note: If a submission has been made to the CBHCC, the NSBAC will review the outcome of that submission.]

Please note: The NS Building Advisory Committee will only consider changes to the Nova Scotia differences within the Regulation. Personal information collected on this form is used only for the purpose of consultation regarding code change suggestions. This personal information may be shared with other public bodies for the purpose of consultation. Any personal information collected is subject to the privacy provisions of the *NS Freedom of Information & Protection of Privacy Act*, and the federal *Access to Information Act*. For changes to the National Codes, please see the CBHCC website at: [Code change requests](#)

Appendix A

Explanatory Material for the Nova Scotia Building Code Regulations

This Appendix is included for explanatory purposes only and does not form part of the regulations. The bold-face reference numbers that introduce each item refer to the requirement in the Code.

Appendix notes which are contained in these regulations are noted in the regulation as (See Note NS-Specific provision, NSBCR).

Throughout the regulation, Notes which are contained in the NBC are noted as (See Note A-specific provision, NBC).

Notes contained in the NBC edition apply to the Nova Scotia Building Code Regulation unless specifically deleted or replaced by the Nova Scotia Building Code Regulations.

Some notes contained in this document do not have a reference from the official regulation and are marked as follows **(No reference from the regulation currently)**.

NS-9(2) Exemptions

The replacement of a fuel-fired furnace or boiler that does not require a building permit may still require a permit or authorization under the Technical Safety Act.

Where insulation is added or replaced, it is not expected that the insulation would meet the requirements of Section 9.36., Energy Efficiency. If an existing 2x4 wall assembly had no insulation and it is now insulated, that is an improvement in the existing building, and it would not be expected that the wall cavity be enlarged to meet the current requirements. The insulation and its installation would be required to meet Section 9.25. of the Code.

NS-10 Home-Based Business Exemptions

The intention is to ensure that the dwelling unit is used as a residential unit rather than other occupancies with subsidiary sleeping areas. The appropriate uses for home-based businesses, signage, parking and other non-Building Code requirements should be set out in the Land-Use Bylaw.

Where a home-based business in a dwelling unit exceeds the limits set out in Subsection 10(1) of the regulation, it may be permitted, however there is no exemption from it being a separate major occupancy.

Subsection (2) is applicable to dwelling units regulated under Part 3, while Subsection (5) is applicable to dwelling units regulated under Part 9. Subsection (4) of the regulation clarifies that any dwelling unit with a home-based business is still considered to be a house and exempt from the barrier-free design requirements in Section 3.8. (Part 3, Division B, NBC) of the Code.

NS- 10A Modular and Manufactured Buildings

A modular panel may be open or closed. An open panel is constructed in a manner that all elements are visible after installation and can be inspected on-site. A panel that is closed is one that cannot be inspected on-site without the disassembly, damage or destruction of the panel. If a closed panel is inspected by the authority having jurisdiction during manufacturing, it would be acceptable under Sentence (1). An open panel could be inspected offsite or onsite. If the panel is certified under the CSA A277 Standard, "Procedure for certification of prefabricated buildings, modules and panels", that would be sufficient to demonstrate compliance with the Building Code.

NS 12(1) General

Where an approval is not required for the installation of a new on-site sewage system, a copy of the notification form and the receipt issued by the Department of Environment and Climate Change would be the acceptable documentation required. Under the regulations

installation of a Pit Privy is exempt from the notification or approvals by the Department of Environment and Climate Change. Under the On-site Sewage Disposal Systems Standard, a pit privy is only acceptable as a stand-alone sewage system if the building has no running water supply.

NS 15 Dimensional or Measurable Tolerances

The intent of the Code is to allow a minor degree of tolerance in meeting the prescriptive requirement. This may equally apply to a dimension, quantity, or other quality of a product or system by determining the size, amount, or degree of (something) by comparison with a standard unit.

NS 21 Temporary Building or Occupancy

This Article allows the erection of a temporary building, or a temporary change of occupancy classification for a short-term use of an existing building which may not fully comply with all requirements of the Building Code. However, any matter of life safety must be adequately addressed.

NS-35(1) & (2) Notification for Field Review and Certification of Field Review of Construction

The owner of a building being constructed under the scope of Part 9 of the Code is required to inform the authority having jurisdiction to review for compliance with the Code at each of the seven stages listed. This includes all site constructed, modular, and manufactured buildings. However, the municipality may conduct a different number of inspections based on the requirements of any project.

For example, inspections made under Clauses (1)(a) footings in place, (b) subfloor plumbing and (c) subfloor and foundation insulation, could be combined into one inspection for a single dwelling where there is no insulation required under a floor slab, and the home is on a large lot, not near a property line.

In other instances, such as a multi-suite building, several inspections may be required as various stages of work are completed. In this scenario, some suites might be finished and occupied while others are still under construction.

The owner of a building being constructed outside the scope of Part 9 of the Code is required to request the authority having jurisdiction to review for compliance with the Code at times agreed to by the authority having jurisdiction. The timing of these inspections should be established prior to the start of construction to so that the review of construction for compliance to the Code can be done.

NS 59A Prescribed Organizations

Code evaluations done by the ICC-Evaluation Service (Canada) must be done against the National Building Code of Canada and its relevant standards. Evaluations done to other Codes and standards, such as the IBC, are not intended to be captured by this requirement.

NS 66. Referenced Standards Designated under the following Acts and Regulations of the Province of Nova Scotia

Standards are sometimes adopted under more than one Act or Regulation. To provide consistency in the adoption of standards, the Nova Scotia Building Code recognizes the editions as adopted by those Acts and Regulations.

Code users are advised that they should confirm which edition of a standard is in use under the following provincial acts and/or regulations:

- (a) *Technical Safety Act* and Section 4 (boiler and pressure equipment standards) and Section 6 (fuel safety standards) of the *Technical Safety Standards Regulations*,
- (b) *Elevators and Lifts Act* and *Elevators and Lifts General Regulations*, or as that Act and regulation are replaced by the *Technical Safety Act* and *Technical Safety Standards Regulations*,
- (c) *Electrical Installation and Inspection Act* and *Electrical Code Regulations*, or as that Act and regulation are replaced by the *Technical Safety Act* and *Technical Safety Standards Regulations*.

The regulations made under these Acts shall be enforced in Nova Scotia and may vary from those adopted under the National Model Codes for Building, Plumbing, Fire, and Energy.

It should be noted that the *Elevator and Lifts Act* and the *Elevators and Lifts General Regulations* do not require compliance with Appendix E of the B44 Standard. Building Officials should be ensuring compliance as per Sentence 3.5.2.1.(3) of the NBC.

NS 74 3.4.6.16.(8) Door Release Hardware, in Provincially Licensed Group B, Division 2 or 3 Occupancies, for Exit Doors and Doors in a Means of Egress.

Provincially licensed facilities with an occupancy classified Group B, Division 2 or Division 3 that install a manual pull station that opens the door on activation as referenced by Subclause 3.4.6.16.(6)(b)(iv) shall be predominately blue. At the time an application is made for a building permit, the applicant should be providing written confirmation from the Province of Nova Scotia that the specific facility is to be licensed, prior to occupancy.

Installation of a manual blue pull station under Subclause 3.4.6.16.(6)(b)(iv). must comply with requirements of CAN/ULC-S319, "Electronic Access Control Systems." Once a door is activated the door shall remain unlocked until such time as the release device has been manually reset.

All locks and mechanisms will release when a fire alarm is activated, if there is a power failure, or by actuation of a manually operated switch readily accessible only to authorized personnel.

Local signals

Building owners may also wish to equip these doors so that a localized signal is activated within the building or a portion of the building, to notify them that a door has been

unlocked. Such signals should sufficiently differ from the sound and temporal pattern of a fire alarm so as to not confuse occupants.

NS-3.8.1. Barrier-Free Design General

Barrier-free requirements, with few exceptions, apply to all buildings. The Code continues to exempt a few occupancies such as houses and small residential buildings of not more than 3 units as it has in the past but now requires those buildings to apply Subsection 3.8.4. to them.

The requirements for roofed accommodation apply to all buildings that fall within the definition of roofed accommodation. This includes housing as per Sentence 3.8.2.1.(5) and tiny houses that are used for short term rentals and fall within the definition of roofed accommodation.

Barrier-free paths of travel are required in all normally occupied floor areas of a building and are required to be accessible by all persons. This applies to stages including ones located in churches, schools and other types of facilities where the public may be expected to access the stage. The barrier-free access to the stage should be adjacent to the path that would be used by other persons accessing the stage.

NS-3.8.2.1.(1)(f) Emergency Facilities Exempt

The exemption is intended to include sleeping quarters and associated kitchen and washroom facilities, but does not extend to assembly occupancies, administration or call-centre type operations within fire, rescue, or emergency response facilities.

NS-3.8.2.1.(7) Residential Suites required to be barrier-free.

Where there are more than 3 residential suites in a building, barrier-free units shall be provided according to Table 3.8.2.1. and every remaining unit shall comply with Subsection 3.8.4.

In a building where you require no barrier-free units, then all the units shall comply with Subsection 3.8.4. As an example, where you have 50 units, you would require 1 barrier-free unit for the first 45 units, then 1 more barrier-free for the additional 5 units to be constructed.

Where there are 3 residential suites or less in a building, there is no requirement to have one unit conform to Subsection 3.8.3.26., Suites of Residential Occupancy, however all units are required to conform to Subsection 3.8.4., Adaptable Housing Requirements, regardless of their location in the building. See Note NS-3.8.1. regarding roofed accommodation for further clarification.

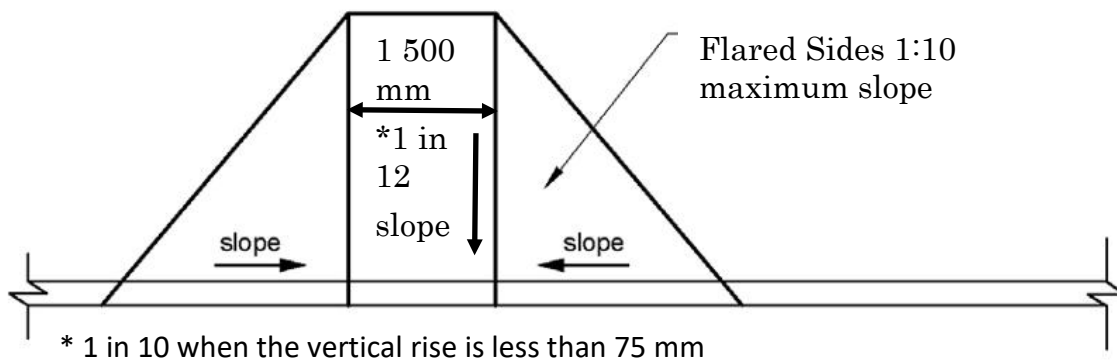
NS-3.8.3.1.(1) Design Standards

Where the CSA B651 standard is utilized and additional items are installed that are not specifically required by the Building Code, those items are required to be installed in accordance with the appropriate provisions of the CSA B651, "Accessible Design for the Built Environment". For example, medicine cabinets are not required to be provided, but if

they are installed, they shall conform to the requirements of the standard.

NS-3.8.3.4. Curb Ramp

Curb ramps commonly referred to as curb cut. Curb ramps are required where there are curbs in the path of travel, typically from a passenger loading zone or designated parking area to a building.



Curb ramps shall have a minimum width of not less 1 500 mm in areas measured across the ramp. The sides of the curb ramp shall be flared. The gradients of the curb ramp shall be 1 in 12 and the flared sides shall be not more than 1 in 10. Curb ramps should have a surface that is slip-resistant, and colour and texture contrasted with the adjacent surfaces.

NS-3.8.3.14. Water Closets

Articles 3.8.3.14 and 3.8.3.15. establish the height of a water closet and rim of a urinal based on average adult user's heights. This allows for various circumstances depending on the age or disability of the intended occupants.

However, there are circumstances where facilities are designed specifically for the use of small children or persons with specific disabilities. These include day cares, elementary schools, group homes, homes for special care, residential care facilities, etc. Designers and code authorities should exhibit good judgement and be reasonable in allowing some variance depending on the needs of the intended users.

The height of a water closet, primarily intended to serve young children might be reduced to a minimum of 305 mm to 380 mm, and conversely for an adult person with disabilities a height of not more than 460 mm. Chapter 6, Section 604.9 of the 2010 ADA Guidelines provides guidance on this topic.

Stall urinals without a step can provide greater accessibility for a broader range of persons including children, and people of short stature.

NS-3.8.3.21.(4)(d) Provision of TTY Phones

Cell phone with text messaging capabilities satisfies this requirement.

NS-3.8.4.3. Interior Doors and Corridors in Dwelling Units

This provision is intended to ensure that a person in a wheelchair could get into all habitable rooms and service rooms within the dwelling unit. Doors for spaces such as storage rooms, crawl spaces, attics and reach-in closets that would not normally be entered would not be required to meet this requirement. This provision was changed to align with barrier-free doors in other parts of the Code of a clear width of 850 mm.

NS-3.8.4.5. Bathrooms in Dwelling Units

This provision is intended to ensure there is adequate backing for the installation of grab bars in the future by the occupants of the dwelling unit. Plywood, waferboard, particleboard, or solid lumber behind the wall finish and encompassing the location of the future grab bars would provide suitable backing to anchor the grab bars.

NS-3.8.4.6. Duplex Receptacles, Switches and Controls

Controls with different shapes can help identify different functions, for example an up arrow might increase the temperature setting, and a down arrow might decrease the temperature setting on a thermostat. Electronic controls may help facilitate the use by a wider range of persons. Proprietary electrical receptacles are receptacles for dedicated use such as a garage door opener, washer, dryer, refrigerator, kitchen range, sump pump, task lighting, wall clock or similar dedicated uses and are exempted from the height requirements.

Activation devices include push buttons to operate devices such as a card reader to unlock a door, a garage door opener or a push button on an intercom or doorbell.

NS-3.8.4.6.(5) Electrical Receptacles

Where the general use electrical receptacles are required by the Canadian Electrical Code to be in a wall and the electrical authority having jurisdiction permits them in a location such as a floor, this provision is waived. Where additional electrical receptacles beyond those that are required by the Canadian Electrical Code are installed, the provision in Sentence (5) is not applicable.

NS-9.9.10.1.(1) Egress Windows (No reference from the regulation currently)

Clause 9.8.8.1.(4)(b) require a mechanism that can only be released with the use of tools or special knowledge to open windows more than the required 100 mm unless exempted in Sentence (5). The Note in the NBC references Window Opening Control Devices (WOCD) in the ASTM F2090, "Standard Specification for Window Fall Prevention Devices with Emergency Escape (Egress) Release Mechanisms".

Sentence 9.9.10.1.(1) requires that each bedroom that is not sprinklered to have at least one window or an exterior door to the outside that is openable without the use of keys, tools or special knowledge, however there is no reference to the ASTM F2090 Standard.

A WOCD mechanism that complies with the ASTM F2090, “Standard Specification for Window Fall Prevention Devices with Emergency Escape (Egress) Release Mechanisms” can be a means of complying with both Sentences 9.8.8.1.(4) and 9.9.10.1.(1). This type of mechanism would be inappropriate for any bedroom or sleeping room that is required to be barrier-free due to the potential for a person to not being able to use both hands simultaneously.

NS-9.10.2.2. Home-Type Care Occupancy (No reference from the regulation currently)

CALCULATION OF PERSONS RE: SLEEPING ACCOMMODATION:

9.9.1.3.

1) Except for *dwelling units*, the *occupant load* of a *floor area* or part of a *floor area* shall be the number of persons for which such areas are designed, but not fewer than that determined from Table 3.1.17.1., unless it can be shown that the area will be occupied by fewer persons.

2) The occupant load for *dwelling units* shall be based on 2 persons per bedroom or sleeping area.

If caregiver and family reside in building

Part A: Bedrooms occupied by them in accordance with the rules for dwelling units. 2 persons per bedroom.

Part B: Sleeping rooms occupied by the residents will be 2 persons per bedroom the same as dwelling units based on Clause 9.10.2.2.(2)(a) regarding complying with the applicable requirements relating to detached houses.

Table 3.1.17.1. cannot be used as home-type care occupancies are not a listed occupancy type. Care occupancy cannot be used as it specifically exempts home-type care occupancies within its definition.

If the designer can demonstrate to the Authority Having Jurisdiction that each resident sleeping room will be occupied by more/fewer persons, that number will be permitted to be used.

Sleeping accommodation will be based on the total number of persons calculated in Part A, for caregiver and family plus the number of residents calculated in Part B.

If sleeping accommodation is more than 10, it is no longer a home-type care occupancy and must be designed in accordance with Part 3 for care occupancies. If sleeping accommodation is 10 persons or less, then Article 9.10.2.2. can be used. Some Sentences in Article 9.10.2.2. then utilize the number of residents in sleeping rooms (Part B) to further refine the requirements.

BARRIER-FREE REQUIREMENTS

Does a home-type care occupancy have to conform to Section 3.8.?

Sentences 9.10.2.2.(3) and (4) explicitly say compliance with Section 3.8. is required. If the building is compliant with these 2 sentences, then Section 3.8. compliance would also be required for the building.

Sentence 9.10.2.2.(2) is silent, but says it needs to comply with the requirements of Part 9 relating to detached houses. Sentence 9.5.2.1.(1) requires every building to be designed in conformance with Section 3.8.

Clause 3.8.2.1.(1)(a) exempts detached housing from the BF requirements. Therefore, home-type care occupancies conforming to Sentence 9.10.2.2.(2) would not be required to be designed to Section 3.8. However, as per the requirements for detached houses, they would need to be designed to Subsection 3.8.4.(adaptable housing requirements) as per Sentence 3.8.2.1.(6).

NOVA SCOTIA SPECIFIC REQUIREMENTS

The NSBC has a Sentence (6) that is not within the NBC and that Sentence requires that the water supply for fire suppression have emergency power capable of operating under full load for not less than 30 minutes. This aligns with the minimum 30-minute water supply that is required by Subclause 9.10.2.2.(2)(b)(ii). This can include battery backup, generator or other energy storage solutions.

NS-9.36.1.3.(1) Energy Efficient Design Compliance and Application

There are three potential paths to follow to achieve compliance with the energy conservation requirements of Section 9.36. NBC. These are a

- prescriptive or trade-off solution for climate Zone 6, which is achieved by meeting the requirements found in Subsections 9.36.2. to 9.36.4. inclusive.
- performance solutions for the climate zone where the building is located as described in Subsection 9.36.5.
- The tiered performance requirements for the climate zone where the building is located as described in Subsection 9.36.7. for at least Tier 1.
- The tiered prescriptive requirements for climate Zone 6 as described in Subsection 9.36.8. for at least Tier 1; or
- compliance with the NECB which also offers, prescriptive simple or detailed trade off and performance paths for compliance.

A-9.38.2.1.(4) Insulation requirements for recreational cabins

Recreational cabins would be considered a non-heating season or intermittently occupied building as per Sentence 9.36.1.3.(6) of the NSBCR. Therefore, Section 9.36. would not be applicable to a recreational cabin even when insulation is installed. When insulated, the requirements of Section 9.25. would be applicable.

A-9.38.2.2.(2) Foundations

Where a 190 mm x 190 mm x 390 mm (nominal 8"x8"x16") hollow concrete block is used to construct a foundation for a recreational cabin, the maximum height would be calculated as follows:

Least dimension of the block is 190 mm.

Hollow block alone:

$$4 \times 190 \text{ mm} = 760 \text{ mm}$$

Hollow block with voids filled with concrete $10 \times 190 \text{ mm} = 1\,900 \text{ mm}$ (must be reduced to 1.2 m or 1 200 mm maximum)

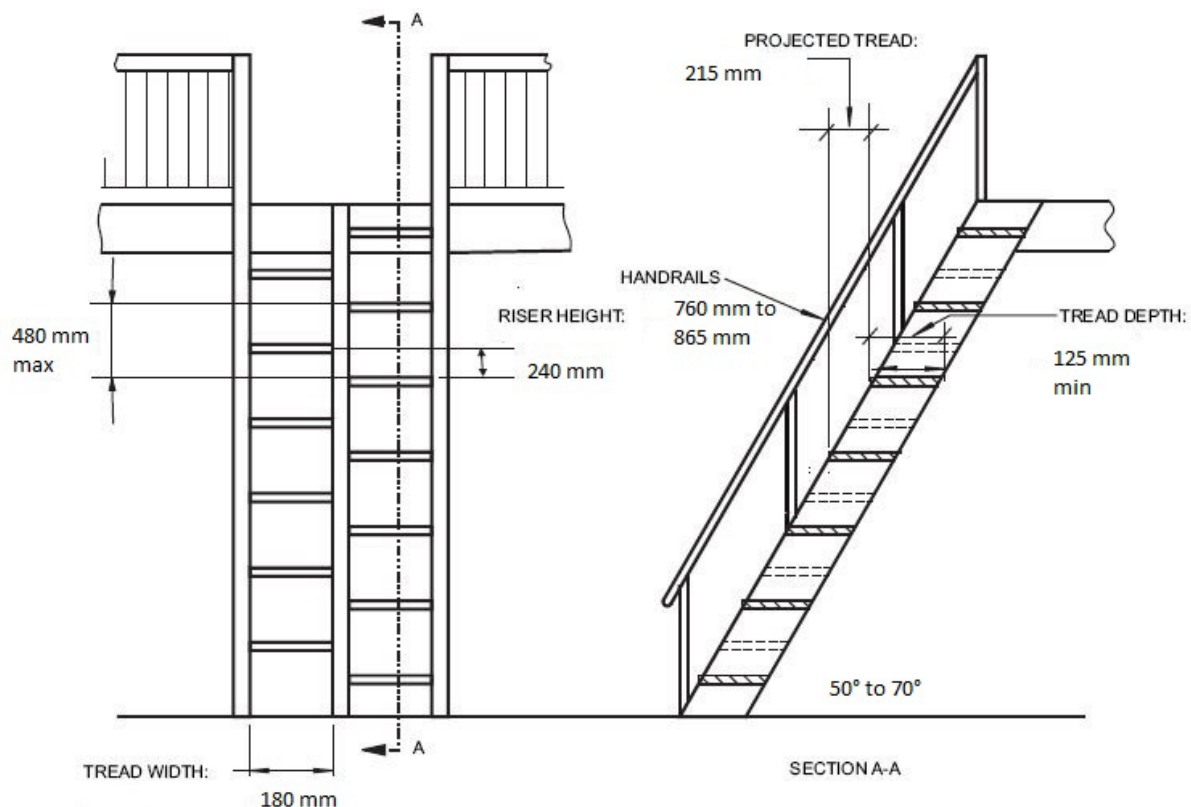
A-9.39. Tiny Homes on Wheels (THOW)

Tiny houses that are set on a permanent trailer chassis with wheels, often referred to as Tiny Homes on Wheels (THOW), do not fall within the scope of the Nova Scotia Building Code Regulations. They may fall within the scope of other laws or regulations such as the *Motor Vehicle Act*.

A-9.39.2.2.(8) Smoke Alarms in Lofts

Smoke alarms are permitted to be within 1.5 m of the edge of the open side of the loft. As smoke alarms are required to be installed in accordance with CAN/ULC-S553, Installation of Smoke Alarms, reference should be made to Section 5.2 Location of Smoke Alarms within that standard to ensure their location within the tiny home is acceptable to ensure adequate operation and to avoid nuisance alarms due to poor locations.

NS-9.39.2.5. Alternating Tread Device



Appendix Notes on Forms for Field Review of Construction

As a result of adoption of the NECB and Section 9.36. amendments to the NBC the preamble of each Form has been amended to add that in addition to having responsibility for compliance with the National Building Code of Canada, professional designers are also responsible for compliance with the National Energy Code of Canada for Buildings and Section 9.36. Energy Efficiency for Houses and Small Buildings of the National Building Code, if applicable.

In some instances, there may be overlapping responsibilities which must be coordinated by the Prime Consultant. The Prime Consultant should assign one of the consultants to be responsible, or the Prime Consultant is to assume that responsibility, in which case they must be an appropriate design professional.

All the Forms listed in Schedule A, the Forms may not be altered in their form or content. Any modification makes the form null and void in law and therefore cannot be accepted by the authority having jurisdiction.

Form 2: Commitment Certificate – Prime Consultant

Coordination of the design documents is the responsibility of the Prime Consultant. In most cases this would be the building designer, who may be an Architect, Professional Engineer or Interior Designer acting within their scope of their practice. However, the Prime Consultant may not necessarily be a design professional and in this case, there are obligations of the Prime Consultant to assure there are appropriate design professionals engaged to address the subsequent Letters of Undertaking and responsibilities.

Where the size and complexity of the design have been identified, additional areas of review shall be conducted as deemed appropriate in consultation with the authority having jurisdiction.

Where the performance path has been used to meet the requirements of the NECB the consultant(s) engaged to conduct the analysis or the consultant(s) who employs the technician(s) to run such software to conduct the analysis will be expected to file the Form 11: Commitment Certificate – Resource Conservation Measures – Energy Requirements to the authority having jurisdiction.

Form 3: Commitment Certificate – Building Design Requirements includes demonstrating compliance to the prescriptive, trade-off, or performance paths of the NECB 2020. The designer may be responsible for energy efficiency of roofing and wall cladding systems; thermal insulation systems, including condensation control and cavity ventilation; the exterior glazing; integration of building envelope components; the environmental separation requirements (Part 5) Building Envelope; and the thermal design of opaque assemblies; thermal design of fenestration, doors and skylights; and airtightness.

Form 5: Commitment Certificate – Mechanical Design Requirements includes

demonstrating compliance to the prescriptive, or performance paths of the NECB 2020 for Mechanical Systems, and the efficiency of heating equipment; of ventilation equipment; of air conditioning equipment; and service water heating.

Form 6: Commitment Certificate – Electrical Design Requirements includes demonstrating compliance to the prescriptive, trade-off paths, or the performance path of the NECB 2020 for Electrical Systems; the efficiency of interior and exterior lighting; and the efficiency of electric power systems and motors.

Form 11: Commitment Certificate – Resource Conservation Measures – Energy Requirements

Form 11 is not a compliance document but may be used to assure competency of the designer and where software was used it conforms to the ANSI/ASHRAE 140, “Standard Method of Test for the Evaluation of Building Energy Analysis Computer Programs”.

Design compliance and Field Review of Construction may be demonstrated using prescriptive, simple or detailed trade-off paths, or the performance path of the NECB. A technician using software to demonstrate compliance may not necessarily be a professional; however, the Form 11 must be signed by an architect, or professional engineer taking responsibility for the overall building design.

There are now checkboxes to allow for individual consultants to sign off on their area of work on the project. This will allow for the architect to sign off on the building envelope and an electrical engineer to sign off on the electrical design etc.

The performance path in the NECB

Performance compliance path is met by the submission of the documentation required in Division C, Article 2.2.2.8. of the NECB 2020. The professional designer is deemed to be responsible for the thermal design of opaque assemblies; the thermal design of fenestration, doors and skylights; the efficiency for airtightness; the efficiency of interior and exterior lighting; efficiency of heating equipment; efficiency of ventilation equipment; efficiency of air conditioning equipment; the efficiency of service water heating; and the efficiency of electric power systems and motors.

Form 12 – Certification of Field Review of Construction

An agreed upon schedule of review made prior to the building permit being issued is highly recommended on all projects. Where the project is deemed to be complex an agreed upon schedule of review made in consultation with the authority having jurisdiction is mandatory.

Refuse to accept Form 12 – Certification of Field Review of Construction

An authority having jurisdiction may refuse to accept the Form 11 unless the designers can demonstrate to the authority having jurisdiction that they have regularly reviewed the construction in progress based on the complexity of the design and specification submitted for the building permit and determined by the level of complexity of the work in accordance with the respective obligations of their design professional associations.

Certification of Field Review

The Certification of Field Review is to be signed by each design professional who has been involved during the design and construction of a building.

Change in Design Professional

Should a design professional change during the design and construction process, the owner and design professional who has ceased to be engaged by the owner, and the new design professional are jointly and severally responsible to notify the authority having jurisdiction of such a change within 72 hours of any change.

Failure to notify the authority having jurisdiction of such a change may result in a complaint being filed with the designer's professional association and may delay processing of an occupancy permit.

NS - No. 34 Schedule "D" ALTERNATE COMPLIANCE METHODS FOR EXISTING *Buildings*

The Code requires 100 per cent of all public entrances to have barrier-free access. Typically, small buildings may only have 1 or 2 entrances. Public way means a sidewalk, street, highway, square, or other open space to which the public has access, as of right or by invitation, expressed or implied. Street means any highway, road, boulevard, square or other improved thoroughfare 9 m or more in width, which has been dedicated or deeded for public use, and is accessible to fire department vehicles and equipment.

The intent is to allow the use of a stair conforming to the alternate requirement for an existing building where no ramped or lift access is possible either at the front door or another door into the building. This would occur most frequently where a building sits on the lot line at the sidewalk, and there is no other door accessible from the public way.

The acceptance of an alternative barrier-free path of travel to the entrance does not relieve any other barrier-free requirement provisions of the Code. It is anticipated that even if the only access is by a stair, in compliance with the alternate compliance measure, the balance of the premises shall comply with the barrier-free requirements.

This alternate compliance measure is inappropriate for a restaurant use as the Department of Environment and Climate Change (ECC) has not accepted this as a barrier-free entrance for restaurants. They should be consulted prior to construction of any restaurant to ensure compliance with the Food Safety Regulations as required by Section 18A of the Food Safety Regulations.